

AMPLIFY SOLUTIONS GROUP AND SAM ROBERTS WAIVER AND DISCLOSURE

This document contains a waiver and disclosure. By signing this document, you acknowledge that Amplify Solutions Group and Sam Roberts have put you on notice of the type of Service they provide and, subject to clause 17.9 and to the extent permitted by Law, you agree to waive certain legal rights, including rights to sue or claim compensation in relation to the Service. Please read this Disclosure and Waiver carefully. The Agreement between the Client and Amplify Solutions Group and Sam Roberts shall be read in conjunction with this Disclosure and Waiver. This Disclosure and Waiver shall operate to the exclusion of any words to the contrary effect expressed in other communications or documentation of Amplify Solutions Group or Sam Roberts, subject to clause 17.9.

DEFINITIONS

1 In these Terms:

- 1.1 **“Affiliates”** or “Affiliate Partners” means the following persons or entities, their related entities as defined in the Corporations Act 2001, and any other service provider or property developer with whom Amplify Solutions Group and Sam Roberts have a referral or business relationship and whose identity is disclosed to the Client in connection with the Service, include;

Smart Super Management Pty Ltd (ACN/ARBN: 658 710 939);
 SJS Wealth Solutions Pty Ltd (ACN: 622 469 845);
 Peter Leslie Dunn ABN 19 692 359 631;
 Heart of Lending Pty Ltd (ABN 92 657 391 341);
 Claire McAuliffe at The Professionals (ABN 73 676 044 367);
 DPS Lending Solutions WA PTY LTD (ABN 33 657 948 831);
 After Builder Pty Ltd (ABN 64 629 354 749);
 La Vida Australia Pty Ltd (ABN 36 645 789 993);
 La Vida Homes WA (ABN 36 645 789 993);
 PerservX Developments (ABN 52 672 255 471);
 Clearline Capital PTY LTD (ACN 686 451 267)

The above list is illustrative only and is not an exhaustive list of our Affiliate Partners.

- 1.2 **“Amplify Solutions Group”** means Amplify Solutions Group Pty Ltd (ACN: 663 126 725) and each of its related entities, as defined in the Corporations Act 2001, now, or at any time in the future;
- 1.3 **“Agreement”** means any contract or agreement, whether formal or informal, written, oral, electronic or partly in any of those forms, formed between the Client and Amplify Solutions Group and Sam Roberts in connection with the Service, including any agreement associated with the Client Company Pack or an Appointment. This Disclosure and Waiver applies to all Appointments, whether conducted in person, via Zoom, through another online or video-conferencing platform, by telephone or by any other remote communication method, and to associated materials and communications.
- 1.4 **“Claims”** means any action, application, appeal, arbitration, cause of action, claim, complaint, cost, debt due, demand, determination, inquiry, judgment, suit, or verdict at law, in equity, arising under any statute, regulation, or other legislative instrument, or arising under any contract, deed, the Agreement or any other instrument made or approved under any law;
- 1.5 **“Client”** means the individual, business, partnership or company entering into an Agreement with Amplify Solutions Group and Sam Roberts and includes the Client’s successors and assignees;
- 1.6 **“Disclosure and Waiver”** means the disclosure and waiver set out herein;
- 1.7 **“Factual Information”** means objectively ascertainable information whose truth or accuracy cannot reasonably be questioned;

- 1.8 **“Appointment”** means any initial or subsequent consultation, meeting, presentation, property showcase or follow-up relating to the Service, whether conducted in person, via Zoom, through another online or video-conferencing platform, by telephone or by any other remote communication method;
- 1.9 **“Financial Product Advice”** means a recommendation or a statement of opinion, or a report of either of these things, that is intended to influence a person or persons in making a decision about a particular financial product or class of financial product, or an interest in a particular financial product or class of financial product or could reasonably be regarded as being intended to have such an influence;
- 1.10 **“Financial Products”** means a facility through which, or through the acquisition of which, a person does one or more of the following makes a financial investment, manages financial risk or makes non-cash payments;
- 1.11 **“Financial Services”** has the meaning given in Div 4 of Pt 7.1 of the Corporations Act;
- 1.12 **“Law”** means an Act of Parliament, statute, regulation, proclamation, ordinance or by-law, including all statutes, regulations, proclamations, ordinances or by-laws amending, consolidating or replacing one or more of them;
- 1.13 **“Party”** means each party to the Agreement, including Amplify Solutions Group, Sam Roberts and the Client, and **“Parties”** has a corresponding meaning;
- 1.14 **“Representative”** has the meaning given in s910A of the Corporations Act;
- 1.15 **“Service”** means the provision by Amplify Solutions Group and Sam Roberts of factual information, introductions, referrals and appointment coordination through their relationships with Affiliate Partners. The Service includes information about the Family Savings Pack, Finance & Property Pack and property showcases presented on behalf of developers, and access by referral to the products and services offered by the relevant Affiliate Partners. Advice, products and services supplied by an Affiliate are provided by that Affiliate under its own engagement terms. The Service does not include Financial Product Advice or dealing in Financial Products by Amplify Solutions Group and Sam Roberts;
- 1.16 **“Client Company Pack”** (also referred to as the “Client & Company Pack”) means the printed or electronic information, presentations, booklets and related materials provided to the Client in connection with the Service, whether supplied together or separately. It includes the following, where provided:
 - (a) **Family Savings Pack:** factual information about household savings opportunities and relevant products or services available through Affiliate Partners, together with information collected to facilitate relevant introductions or referrals;
 - (b) **Finance & Property Pack:** factual information about finance and property options available through Affiliate Partners, the referral process and the respective roles of the service providers;
 - (c) **Property Showcase:** property and development information presented on behalf of developers, including available properties, developer-supplied specifications, pricing and availability where provided; and
 - (d) **Other related materials:** the 20 Year Plan Booklet and any supporting forms, presentations or follow-up materials.

The Client Company Pack is not limited to a particular page count or delivery format and may be used in connection with any Appointment.

CLIENT'S WARRANTIES, ACKNOWLEDGMENTS, AND AGREEMENTS

- 2 I, the Client, warrant, acknowledge and agree that the following applies to all Appointments and all parts of the Service, whether conducted or provided in person, via Zoom, through another online or video-conferencing platform, by telephone or by any other remote communication method, and to all printed and electronic Client Company Pack materials and associated communications:
 - 2.1 Amplify Solutions Group and Sam Roberts do not provide Financial Product Advice nor does Amplify Solutions Group or Sam Roberts deal with Financial Products.
 - 2.2 The Service provided to me by Amplify Solutions Group and Sam Roberts comprises factual information, introductions, referrals and appointment coordination through their relationships with Affiliate Partners. Any advice, products or services offered by an Affiliate Partner are supplied by that Affiliate Partner under its own engagement terms.
 - 2.3 The information collected by Amplify Solutions Group and Sam Roberts through the Client Company Pack, including the Family Savings Pack, Finance & Property Pack and 20 Year Plan Booklet, or during any Appointment or associated communication, is collected to enable Amplify Solutions Group and Sam Roberts to provide Factual Information relevant to me and inform me of the existence of, or refer me to, one or more Affiliate Partners as part of the Service.
 - 2.4 Any advice, products or services I obtain from an Affiliate Partner are provided under a separate arrangement between me and that Affiliate Partner. Amplify Solutions Group and Sam Roberts may provide factual information, introductions, appointment coordination and property showcase information on behalf of developers as part of the Service, but do not negotiate the terms of Financial Products on my behalf.
 - 2.5 Amplify Solutions Group and Sam Roberts are not a Representative, as defined in clause 1.14, of any of their Affiliates.
 - 2.6 Amplify Solutions Group and Sam Roberts do not consider information collected through the Client Company Pack or during any Appointment or associated communication for the purpose of providing Financial Product Advice, as Amplify Solutions Group and Sam Roberts do not provide Financial Product Advice.
 - 2.7 The Factual Information provided to me by Amplify Solutions Group and Sam Roberts is not intended to influence my decision about a Financial Product and does not constitute an opinion about a Financial Product. The Factual Information provided to me by Amplify Solutions Group and Sam Roberts is objectively ascertainable.
 - 2.8 Information in the Family Savings Pack and Finance & Property Pack describes potential opportunities and referral pathways. It does not guarantee savings, finance approval, property availability or a particular financial outcome. Any eligibility criteria, fees and terms applicable to an Affiliate Partner's products or services are to be confirmed with that Affiliate Partner.
 - 2.9 Property showcases are presented on behalf of the relevant developers using information supplied by them. I understand that specifications, pricing and availability may change and must be confirmed with the relevant developer or authorised sales agent before I enter into a transaction. The provision of property showcase information does not itself constitute Financial Product Advice by Amplify Solutions Group and Sam Roberts.

NO LIABILITY

- 3 The Client understands that Amplify Solutions Group and Sam Roberts have endeavored to ensure that all Factual Information is accurate and reliable, but the Client acknowledges that Amplify Solutions Group and Sam Roberts do not make any representation or warranty as to the accuracy or completeness of any Factual Information which is provided.
- 4 Amplify Solutions Group and Sam Roberts shall not have any liability to the Client for any Factual Information provided which is inaccurate.
- 5 The Client acknowledges that Amplify Solutions Group and Sam Roberts are not able to, and do not provide any Financial Product Advice.
- 6 Amplify Solutions Group and Sam Roberts are not liable for any Financial Product Advice or Financial Product provided to the Client by one or more of Amplify Solutions Group and Sam Roberts' Affiliates.
- 7 Amplify Solutions Group and Sam Roberts shall not be liable to me, the Client, or any third party in contract, tort, warranty, strict liability, statute or any other legal theory for any direct, indirect, consequential, incidental, punitive or exemplary damages, or for any claim for inaccurate Factual Information or referral to an Affiliate who provides inaccurate Financial Product Advice or Financial Products. I, the Client, expressly acknowledge that, to the maximum extent permitted by law, the entire risk arising out of my dealings with Amplify Solutions Group and Sam Roberts and/or Amplify Solutions Group and Sam Roberts' Affiliates remains with me. Amplify Solutions Group and Sam Roberts are not liable for any loss or damage whatsoever suffered by me, the Client, or any other third party.
- 8 I, the Client, agree to waive and hereby do so waive any and all claims and to release Amplify Solutions Group and Sam Roberts from any and all liability for any loss, damage, expense, or injury, including death, that I may suffer as a result of my dealings with Amplify Solutions Group and Sam Roberts and/or Amplify Solutions Group and Sam Roberts' Affiliates, due to any cause whatsoever, including but not limited to the provision of inaccurate Factual Information, or in the case of Amplify Solutions Group and Sam Roberts' Affiliates, the provision of negligent or inaccurate Financial Product Advice.

NO WARRANTY

- 9 Subject to clause 17.9, Amplify Solutions Group and Sam Roberts make no express warranties to the Client in relation to the Service. This clause and the provisions under "No Liability", "No Warranty" and "Indemnity" apply to all Appointments, whether conducted in person, via Zoom, through another online or video-conferencing platform, by telephone or by any other remote communication method, and to all printed and electronic Client Company Pack materials and associated communications.
- 10 Amplify Solutions Group and Sam Roberts will not be liable in any circumstances for any loss or damage whatsoever allegedly incurred and arising out of any negligence for acts or omissions of Amplify Solutions Group and Sam Roberts or their Affiliates.

INDEMNITY

- 11 I, the Client, indemnify and hold harmless and shall continue to indemnify and hold harmless Amplify Solutions Group and Sam Roberts for any and all losses, claims, liabilities, damages, costs, and expenses (including all reasonable legal fees and costs and any other legal or other expenses incurred by it in investigating or defending any action or threatened actions) relating to my use of Amplify Solutions Group and Sam Roberts' Services.
- 12 I agree that Amplify Solutions Group and Sam Roberts may plead this Disclosure and Waiver as a bar to any Claims.

NO LIABILITY FOR AFFILIATES' FINANCIAL SERVICES

- 13 The Client acknowledges that Amplify Solutions Group and Sam Roberts are not liable for any negligent or inaccurate Financial Advice provided to them by Amplify Solutions Group and Sam Roberts' Affiliates.
- 14 Amplify Solutions Group and Sam Roberts accept no responsibility for any of the Affiliate's Financial Services.

PAYMENT AND COMMISSION

- 15 The Client acknowledges that any payment for the Financial Services provided to the Client by the Affiliate must be paid directly to the Affiliate.
- 16 The Client acknowledges that Amplify Solutions Group and Sam Roberts receive a commission from their Affiliates attributable to the Service provided to the Client by Amplify Solutions Group and Sam Roberts.

INTERPRETATION

- 17 In this Waiver and Disclosure, unless the context otherwise requires:
 - 17.1 the singular includes the plural and vice versa;
 - 17.2 a reference to an individual or person includes a corporation, partnership, joint venture, association, authority, trust, state or government and vice versa;
 - 17.3 a reference to any agreement or document is to that agreement or document (and, where applicable, any of its provisions) as amended, novated, restated or replaced from time to time;
 - 17.4 a reference to a statute, regulation, proclamation, ordinance or by-law includes all statutes, regulations, proclamations, ordinances or by-laws amending, consolidating or replacing it, and a reference to a statute includes all regulations, proclamations, ordinances and by-laws issued under that statute;
 - 17.5 If a party comprises two or more persons, the covenants and agreements on their part bind and shall be observed and performed by them jointly and each of them severally and may be enforced against any one or any two or more of them;
 - 17.6 no provision of these Terms will be construed adversely to a Party solely on the ground that the Party was responsible for the preparation of these Terms or that provision;
 - 17.7 where an expression is defined, another part of speech or grammatical form of that expression has a corresponding meaning;
 - 17.8 "including" and similar expressions are not and must not be treated as words of limitation.
 - 17.9 Nothing in this Disclosure and Waiver excludes, restricts or modifies any right, remedy, guarantee or liability that cannot lawfully be excluded, restricted or modified, including under the Australian Consumer Law. All exclusions of liability, releases, waivers, warranties and indemnities in this document are subject to this clause and operate only to the extent permitted by Law.

ACKNOWLEDGEMENT OF THIS WAIVER AND DISCLOSURE

18 I, the Client, acknowledge receipt of this Disclosure and Waiver, confirm that I have read and understood it, and agree to be bound by it, subject to clause 17.9. I understand that it applies to all Appointments, whether in person, via Zoom or through any other online or remote communication method, and to the Client Company Pack and associated communications.

CLIENT'S NAME: _____

CLIENT'S SIGNATURE: _____

DATE: ____ / ____ / 20____